

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
NICHOLAS BELLUSCI,)

Plaintiff,)

-against-)

CITY OF NEW YORK; NEW YORK CITY)
POLICE OFFICER DANIEL MALONE (Shield No.)
4392) and NEW YORK CITY POLICE OFFICER)
FINBAR FLEMING,)

Defendants.)
-----X

ECF FILING
04 CV 10090 (MBM)
**FIRST AMENDED
COMPLAINT**

**A JURY TRIAL
IS DEMANDED**

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983, and of rights secured by the Fourth and Fourteenth Amendments to the Constitution of the United States.

2. Plaintiffs seek damages, both compensatory and punitive, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems equitable and just.

JURISDICTION

3. This action is brought pursuant to 42 U.S.C. §1983 and §1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States. Jurisdiction is conferred upon this Court by 42 U.S.C. §1983 and 28 U.S.C. §§1331 and 1343(3) and (4), this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

VENUE

4. Venue is proper for the United States District Court for the Southern District of

New York pursuant to 28 U.S.C. §1391 (a), (b) and (c).

JURY TRIAL DEMANDED

5. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

PARTIES

6. Plaintiff was at all times relevant herein a residents of the County of Westchester, State of New York.

7. Defendants DANIEL MALONE and FINBAR FLEMING are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK. Defendants DANIEL MALONE and FINBAR FLEMING are and were at all times relevant herein acting under the direction and control of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK, and were acting pursuant to either official policy, or the custom, practice and usage of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK. Defendants DANIEL MALONE and FINBAR FLEMING are sued individually and in their official capacities.

8. Defendant CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by members of the New York City Police Department. Defendant CITY OF NEW YORK was at all times relevant herein the public employer of defendants

DANIEL MALONE and FINBAR FLEMING.

9. At all times relevant herein, defendants DANIEL MALONE and FINBAR FLEMING were acting under color of the laws, statutes, ordinances, regulations, policies, customs and usages of the State of New York, and the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK, and were acting in the course and scope of their duties and functions as officers, agents, servants, and employees of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. At all times relevant herein, they were acting for and on behalf of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK, with the power and authority vested in them as officers, agents, servants and employees of the New York City Police Department, a municipal agency of defendant CITY OF NEW YORK.

NOTICE OF CLAIM

10. A Notice of Claim was duly filed on the Comptroller of the City of New York on January 20, 2004.

11. Receipt of that claim was acknowledged by letter dated February 5, 2004, from The City of New York, Office of the Comptroller to NICHOLAS BELLUSCI.

12. Defendant CITY OF NEW YORK adjourned an examination of NICHOLAS BELLUSCI pursuant to Gen. Mun. L. § 50-h, without date and consented to commencement of this action in the absence of said hearing.

13. At least thirty days have elapsed since the demand and claim upon which this action is predicated were presented to the City of New York for adjustment. The City has refused to make any adjustment or payment.

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

14. On October 21, 2003, at approximately 3:00 p.m., on or near the delivery ramp of the Montefiore Medical Center, Bronx, New York, defendants DANIEL MALONE and FINBAR FLEMING, while engaged in their police functions, repeatedly and without cause or justification struck, beat and kicked plaintiff while effectuating plaintiff's arrest and after plaintiff was under arrest.

15. The brutality occasioned upon plaintiff by defendants was captured by a WCBS-TV helicopter and played on television.

16. Plaintiff sustained painful physical injuries, including head injuries, stitches in two places, black eyes, and other injuries.

CAUSES OF ACTION

FIRST CLAIM: EXCESSIVE FORCE

**DEPRIVATION OF RIGHTS UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS AND 42 U.S.C. §1983**

17. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

18. The conduct and actions of the individual defendants acting under color of law, in striking, beating, kicking or otherwise assaulting and battering plaintiff, was excessive, was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

19. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

SECOND CLAIM: MUNICIPAL LIABILITY

**LIABILITY OF DEFENDANT CITY OF NEW YORK
FOR CONSTITUTIONAL VIOLATIONS**

20. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

21. At all times material to this complaint, defendant CITY OF NEW YORK, acting through the NYPD, had in effect de facto policies, practices, customs and usages that condoned and fostered the unconstitutional conduct of the defendant police officers, and were a direct and proximate cause of the damages and injuries complained of herein.

22. These policies, practices, customs and usages include, inter alia: (a) the failure to properly screen, train, supervise, discipline, transfer, counsel and/or otherwise control police officers engaged in the excessive and unjustified use of force; (b) the police code of silence wherein police officers regularly cover-up police use of excessive and unjustified force by telling false and incomplete stories, inter alia, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board ("CCRB") and the Internal Affairs Bureau, and in public statements.

23. The CCRB is Defendant NEW YORK CITY's primary agency dealing with allegations of police misconduct. In the first half of the year 2000, it received a total of 3,127 allegations¹. Of these, it substantiated as meritorious and referred to the NYPD for discipline a

¹CCRB Semi-Annual Status Report January-June 2000, Table 1, p 33

total of 91 allegations², or 2.9%. As of June 2000, 72 of these cases were still pending at the NYPD (as well as over half the cases referred for discipline during 1999)³.

24. The NYPD also receives allegations of officer misconduct directly and through other channels. The public made a total of 11,260 allegations of officer misconduct in 1999.⁴ Approximately 4,000 were made to the CCRB⁵ and, by calculation, 7000 to the NYPD. In the first half of year 2000, when presumably a substantial number of these 1999 allegations, along with allegations from prior years, would have come up for review and action, the NYPD conducted the following disciplinary activity:

- Termination, 1 officer;
- 30-day suspension with 1-year probation, 1 officer;
- 30-days loss of vacation pay and 1-year probation, 2 officers;
- 20 to 25-day loss of vacation pay and 1-year probation, 1 officer;
- 2 to 20-day suspension, 13 officers;
- 2 to 30-day loss of vacation pay, 37 officers;
- 5 to 10-day loss of vacation pay, 95 officers;

²Id., Table 36, p 105

³Id., Table 42, p 108

⁴Id., Table 6a, p 37

⁵Id., Table 1, p 33

Instructions (lecture or training), 53 officers.⁶

25. These minuscule rates of accountability at CCRB and NYPD levels communicate unmistakably to every police officer on the force that NEW YORK CITY and its officials will by policy tolerate if not encourage all but the most egregious misconduct. They are a license to harm.

26. Acting under color of law, by and through the policy-makers of the CITY OF NEW YORK and pursuant to official policy or custom and practice, the CITY OF NEW YORK intentionally, knowingly, recklessly, or with deliberate indifference to the rights of the inhabitants of the CITY OF NEW YORK failed to effectively screen, hire, train, instruct, supervise, control and discipline, on a continuing basis, their police officers, including the defendant police officer(s) herein, for their propensity for violence, including unreasonable and unjustified force and restraint, for unlawfully striking individuals on the head or neck with batons, flashlights or other blunt objects, for racial bias, for lack of truthfulness, for fabricating criminal charges and falsely swearing to criminal complaints against citizens for the purpose of shielding themselves against criminal and/or civil liability for violating those citizens' civil rights, and for their failure to protect citizens from unconstitutional conduct of other police officers.

27. On information and belief, the defendant police officer(s) herein have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the defendant CITY OF NEW YORK and the New York City Police Department that the defendant police officer(s) herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the

⁶Id., Table 43, p 109

plaintiff herein. The CITY OF NEW YORK had knowledge of or, had it diligently exercised its duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs that were done, as heretofore alleged, or other unlawful or unconstitutional acts were going to be committed. Defendant CITY OF NEW YORK had the power, authority and duty to prevent or aid in preventing the commission of said wrongs, could have done so, and intentionally, knowingly, recklessly or with deliberate indifference to the rights of the inhabitants of the CITY OF NEW YORK failed to do so.

28. On information and belief, defendant CITY OF NEW YORK and the New York City Police Department maintained an inadequate structure for risk containment and stress management relative to its police officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and in its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public in general.

29. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY OF NEW YORK and the New York City Police Department have permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent

or racially motivated behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

30. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

THIRD CLAIM: ASSAULT AND BATTERY

(State Law Claim)

31. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

32. The individual inflicted the torts of assault and battery upon plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

33. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

FOURTH CLAIM: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(State Law Claim)

34. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

35. By the actions described above, the individual defendants engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff. The acts and conduct of the defendants was the direct and

proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

36. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

FIFTH CLAIM: NEGLIGENT HIRING, SCREENING AND SUPERVISION

(State Law Claim)

37. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

38. The defendant CITY OF NEW YORK negligently hired, screened, retained, supervised and trained the individual defendants herein. The acts and conduct of the defendants was the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

39. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

**SIXTH CLAIM: RESPONDEAT SUPERIOR LIABILITY
OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS**

(State Law Claim)

40. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

41. The conduct of individual defendants alleged herein, occurred while they were on duty and in uniform, and in and during the course and scope of their duties and functions as New York City police officers, and while they were acting as agents, officers, servants and employees of the defendant CITY OF NEW YORK, and as a result the defendant CITY OF NEW YORK is liable

to plaintiffs pursuant to the state common law doctrine of respondeat superior.

42. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

SEVENTH CLAIM: NEGLIGENCE

(State Law Claim)

43. Plaintiff incorporates by reference the allegations set forth in each preceding paragraph of this complaint as if fully set forth herein.

44. The defendants, jointly and severally, negligently caused severe physical injuries and extreme emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

45. As a result of the foregoing, plaintiff was subject to great physical pain and suffering, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages in the amount to be determined by a jury;
 - b. Punitive damages in an amount to be determined by a jury;
 - c. The convening and empanelling of a jury to consider the merits of the claims herein;
 - d. Costs and interest and attorney's fees;
 - e. Such other and further relief as this Court may deem appropriate and equitable,
- including injunctive and declaratory relief as may be required in the interests of justice.

Dated: New York, New York
February 3, 2005

DANIEL M. PEREZ, Esq. [DP-0032]
RONALD L. KUBY, Esq. [RK-1879]
Kuby & Perez LLP
740 Broadway at Astor Place, 5th Floor
New York, New York 10003
(212) 529-0223

Attorneys for Plaintiff